

NDOLA CITY COUNCIL

MINUTES OF THE PROCEEDINGS OF THE MEETING OF THE COMMUNITY DEVELOPMENT AND SOCIAL SERVICES COMMITTEE MEETING HELD IN THE COUNCIL CHAMBER, CIVIC CENTRE, INDEPENDENCE WAY ON MONDAY, 16TH SEPTEMBER, 2024 AT 15:20 HOURS.

PRESENT

NAME	DESIGNATION	WARD
Councillor James Banda	<i>In the Chair</i>	Kafubu
Councillor Gift Kunda	Member	Kantolomba
Councillor Francis Kazembe	Member	Mukuba
Councillor James Banda	Member	Kafubu
Councillor Bernard Chama	Member	Kamba
Councillor Febian Mwanza	Member	Skyways

ABSENT WITH APOLOGY

Councillor Phoebe Mpondamali	Member	Kansenshi
Councillor Simon Muleba	Member	Fibobe
Councillor Mathias Mweemba	Member	Kabushi
Councillor Simataa Akapelwa	Member	Kaniki
The Deputy Mayor Luckson Chisenga (Ex-Officio)		Mapalo
His Worship the Mayor Jones Kalyati (Ex-Officio)		Ndola

PRESENT BY INVITATION

Councillor Emmanuel Mulenga	WARD
Councillor Rhoda Chinene	Lupili
Councillor Andronicus Pyoka K Ngulube	Yengwe
	Masala

IN ATTENDANCE

DESIGNATION

Director Human Resource and Administration
Director Public Health
Director Engineering Services
Assistant Director Finance
Assistant Director City Planning – Forward Planning
Assistant Director of Housing and Social Services
Public Relations Manager
Assistant Director of Housing and Social Services
Assistant Director Engineering Services - Development
Head Procurement
District Planning Officer
District Planning Officer
Council Advocate
Council Advocate
Chief Internal Auditor
Chief Committee Clerk
Senior Vet Technician

NAME

Ms. Chembe Chishimba
Mr. Hubert Mwanza
Mr. Elias Mwalaba
Mr. Shem Samalela
Ms. Kasasa K Mulenga
Mrs. Catherine. B Chela
Ms. Rabecca Mushota
Ms. Chilufya Chileshe
Ms. Mulenga C. Nkolola
Mr. Longwani M. Obed
Mr. Kelvin Mpembamoto
Mr. Pasquill S Kakula
Ms. Bwalya Katambo Makina
Ms. Mudenda H. Cheelo
Mr. Cosmas Chizu
Mr. Kondwani Masebo
Ms. Mary M.N. Chileshe

Committee Clerk
Committee Clerk
Assistant Committee Clerk

Ms. Majory Chishimba
Ms. Mwelwa Musenga
Ms. Nalukui Masule

OPENING PRAYER

Prior to the commencement of the meeting a prayer was offered by the Assistant Director of Finance Mr. Shem Samalela.

DECLARATION OF INTEREST

There was no declaration of interest received.

NOTICE OF MEETING

The notice convening the meeting was read by the Director of Human Resource and Administration, Ms. Chembe Chishimba.

CD/164/09/2024

CHAIRPERSON'S OPENING REMARKS

In his opening remarks, the Chairperson welcomed everyone to the meeting and emphasised on the need of Councillors to be punctual and attend meetings when called for. The Chairperson also emphasised on the need for Management to inform Councillors new dates of meetings which were not held as per calendar of meeting.

Having made the above remarks, he declared the meeting officially open.

REPORT OF THE DIRECTOR OF HOUSING AND SOCIAL SERVICES

INTRODUCTION

COMMUNITY DEVELOPMENT SECTION

CD/165/09/2024

TEVETA JULY/ AUGUST 2024 EXAMINATIONS

The Assistant Director of Housing and Social Services informed members of the committee that Ndola City Council through the Department of Housing and Social Services conducted Technical Education, Vocational and Entrepreneurship Training Authority (TEVETA) **JULY/ AUGUST 2024** Examinations from 29th July to 2nd August, 2024 and a total number of **Four Hundred and Twenty-one (421)** students sat for the Examinations. Results were at 100% and publicised.

The table below showed the students who sat for the July/August, 2024 Examination.

S/N	SPONSORSHIP	CENTRE	GENDER		SUB TOTAL	TOTAL
			Female	Male		
01	TEVETA	Mushili Skills Training	127	95	222	
		Mine Masala Skills Training	45	02	47	

		Chifubu Skills Training	39	05	44	
						313
02	DREAMS	Mine Masala Skills Training	04		04	
03	CDF	Mine Masala Skills Training	45	00	45	
	CDF	Mushili Skills Training	16	04	20	
04	SELF/REGULAR	Mine Masala Skills Training	28	09	37	
	SELF/REGULAR	Mushili Skills Training	02	nil	02	
						108
	TOTAL					421

The Committee *Noted* the report.

CD/166/09/2024

COMBINED GRADUATION CEREMONY FOR SKILLS TRAINING STUDENTS

It was reported by the Assistant Director of Housing and Social Services that Ndola City Council through the Department of Housing and Social Services will hold the 10th Graduation Ceremony for skills training programmes on 19th September, 2024 at Mine Masala Skills Training Centre. **Eight Hundred and Forty- Six (846)** students were expected to graduate and these were coming from Mushili Skills Training Centre, Mine Masala Skills Training Centre and Chifubu Skills Training Centre.

Members of the committee noted that the last graduation ceremony was held in September 2022. **Four and Twenty-Five (425)** students that completed in 2023 and have not yet graduated and will graduate together with the **Four Hundred and Twenty-One (421)** students 2024 bringing the total number to **846**.

The Committee *Noted* the report.

CD/167/09/2024

REBRANDING OF NDOLA UNITED FOOTBALL CLUB

The Assistant Director of Housing and Social Services reported that Ndola United Football club was a Council owned and sponsored club. The club recently emerged victorious in the 2023/2024 Copperbelt Provincial Division One League and won promotion to the National Division One League. However, participation in the national league had proved to be very expensive which had prompted the Club through Ndola City Council to embark on numerous efforts to rebrand management and administration of the club to make the team more responsive to the needs of both the community and other stakeholders.

Among the efforts included:

- i. Drafting of the club constitution which would be adopted at an elective annual general meeting to be held by 30th November 2024.

- ii. Recruitment of club paid up members to form the electoral college.
- iii. Printing of replica jerseys for sale as fundraising venture on joint partnership with a local spotting business.
- iv. Soliciting on bringing on board other various sponsors as a way of maximizing on the club revenue.
- v. Securing of the club camp house for the players.
- vi. The recruitment of experienced new players to complement on the local ones.
- vii. Ndola City Council had also seconded two officers to positions of General Secretary and Treasurer to help in the full-time day to day administration of the club.

The Committee *Noted* the Report.

CD/168/09/2024

DRAFT CONSTITUTION FOR THE NDOLA UNITED FOOTBALL CLUB

The Assistant Director of Housing and Social Services reported that the Ndola United Football Club Interim Executive (NUFC) had concluded the drafting of the proposed new Club Constitution. The draft constitution was submitted to the Department of Legal Services for input and now it was being submitted to the standing committee for perusal. The constitution would consequently be adopted by the club during the NUFC Annual General Meeting (AGM) to be held by 30th November 2024.

A copy of the draft Constitution was attached hereto as *Appendix 1*

Management therefore recommended that the Ndola United Football Club (NUFC) new constitution be supported by the sponsors to be adopted and further be adopted at the annual general meeting comprising paid up club members.

Upon a proposal by Councillor Francis Kazembe and duly seconded by Councillor Gift Kunda, it was;

RECOMMENDED:

That the draft Constitution for the Ndola United Football Club (NUFC) be *Approved* with amendments.

CD/169/09/2024

PERFORMANCE REPORT OF NDOLA UNITED FOOTBALL CLUB UNDER 2024/2025: SEASON FOOTBALL ASSOCIATION OF ZAMBIA (FAZ) NATIONAL DIVISION ONE LEAGUE.

It was reported by the Assistant Director of Housing and Social Services that the Ndola United Football Club had since qualified to the 2024/2025 National Division One soccer season that commenced on Saturday 17th August, 2024. The Club had so far played Four (04) games with Two (02) wins and Two (02) loses

The details of the teams standing on the league table was as highlighted below.

FAZ NATIONAL LEAGUE WEEK 4 STANDINGS								
P	Team	P	W	D	L	F	A	Pts
1	Konkola Blades	4	4	0	0	7	2	12
2	Trident Fc	4	2	2	0	3	1	8
3	Mpulungu Harbour	4	2	1	1	6	4	7
4	Kansanshi Dynamos	4	2	1	1	4	2	7
5	Aguila Stars	3	2	1	0	3	1	7
6	Kafue Celtic Fc	4	1	3	0	4	2	6
7	Ndola United	4	2	0	2	5	4	6
8	Jumulo FC	4	1	3	0	4	3	6
9	River Plate Fc	4	1	2	1	3	2	5
10	Prison Leopards	4	1	1	2	4	4	4
11	Kitwe United	4	1	1	2	3	4	4
12	Leopards Hill Fc	3	1	1	1	2	3	4
13	Y.Green Buffaloes	4	0	3	1	3	4	3
14	Chambishi Fc	3	0	2	1	2	3	2
15	Kafue Eagles	3	0	2	1	0	2	2
16	Chipata United	3	0	1	2	1	3	1
17	Chirundu United	3	0	1	2	1	4	1
18	Mines United	4	0	1	3	1	8	1

The Committee **Noted** the Report

CD/170/09/2024

DEVOLVED FUNCTION OF COMMUNITY SPORTS TO LOCAL AUTHORITIES

The Assistant Director of Housing and Social Services reported that the function of Community Sports under the Ministry of Youth, Sport and Arts had been devolved to Local Authorities. So far Ndola City Council had received an amount of Eighty-Six Thousand Two and Six and Eighty-Nine Ngwee only (**K86, 206.89**) out of the approved total budget of Two Hundred and Fifty-Eight Thousand Six Hundred and Twenty-One Kwacha (**K258, 621.00**) for the implementation of community sport activities. The District Sports Officer had since reported for duties at Ndola City Council.

The Assistant Director Housing and Social Services further reported that the funds were yet to be utilised as guided. The guidelines on the utilisation of the same funds had since been received from the Ministry of Youth, Sports and Arts as attached hereto as *Appendix 2*.

The Committee *Noted* the report

CD/171/09/2024

APPLICATION FOR LEGALISATION OF MARKET STALLS AT HILLSIDE MARKET

It was reported by the Assistant Director of Housing and Social Services that Hillside Market was established in 2016 and was spearheaded by the Residents Development Committee (RDC), Councilors and some members of staff from Ndola City Council. However, most of the shops constructed at the site had no documentation with only a few having Council demand notices and mere charge sheets. Originally the Market which was said to had started with the allocation of stalls currently had Two hundred

and fifty (250) stalls out of which one hundred (100) were operational and one hundred and fifty (150) were non-operational.

The Assistant Director of Housing and Social services further reported that Ndola City Council was in receipt of an application for legalization of Market Stalls at Hillside Market in Lupili Ward of Bwana Mkubwa Constituency. The application had been made by the Ward Development Committee (WDC) on behalf of the affected traders to have the Shops legalized by way of obtaining documentation from the Council. The content of the letter had also indicated that the Shops were operational on a daily basis but that shop owners does not have official documents from the Council.

Management therefore was recommending that;

- i) The Two hundred and fifty (250) market stalls located at hillside be legalized
- ii) The owners of the existing Market stalls be charged a sum of Five Thousand Four Hundred Kwacha (**K5,400.00**) before being issued with the relevant ownership documentation.

Upon a proposal by Councillor Francis Kazembe which was duly seconded by Councillor Francis Kabwe, it was;

RECOMMENDED:

That the item on the application for legalization of market stalls at hillside market falls off and the earlier minute number **CD/63/05/2022** to remain in effect.

CD/172/09/2024

APPEAL AGAINST NON-ALLOCATION OF TRADING PLOTS/ LOCK UP STALLS-KAPALALA MARKET

It was reported by Assistant Director of Housing and Social Services that Ndola City Council was in receipt of an appeal letter dated 4th July, 2024 from 29 traders of Masala Market without considering the non-allocation of trading plots/lock up stalls to them by the Council despite them trading in the area for a long time. The Committee may note that currently Kapalala had about one thousand two hundred (1200) Salaula traders who were yet to be allocated trading space at the market. The affected traders had explained that they followed all the necessary procedures but were left out. The affected traders had appealed to be considered for allocation together with all those claiming to have been left out.

Management recommended that the twenty-nine (29) traders and about one thousand two hundred (1200) traders be allocated trading spaces near the cultural village site once the available land was cleared and be used as Salaula section.

On a proposal by Councillor Febian Mwanza and duly seconded by Councillor Francis Kazembe, it was;

RECOMMENDED:

That the twenty-nine (29) traders attached at *Appendix'3'*, one thousand two hundred (1200) traders and twenty-one (21) others be allocated trading spaces (stalls) as Salaula section near the cultural village site once the land was available.

CD/173/09/2024 REQUEST TO CREATE 177 MARKET STANDS OUTSIDE THE PARAMETER FENCE OF CHISIKONE MARKET IN TOWN

The Assistant Director of Housing and Social services reported to the Committee that, following the resolution vide minute number *CD/149/03/2024*, the Ministry of Local Government and Rural Development had since *not approved* the request to create the above stated stands outside the market. A proposal to partner with owners of surrounding buildings to permit stalls was being pursued. However, the office of Town Clerk was still re-engaging the Minister of Local Government and Rural Development on the way forward.

Attached hereto was *Appendix 4* for your reference.

The Committee **Noted** the report.

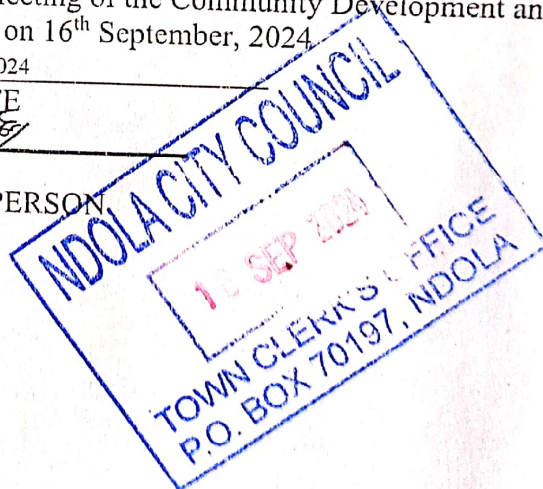
There being no other business to transact, the meeting ended at 16;25 hours after a closing prayer by Mr Shem Samalela.

Signed in accordance with the Resolutions of the Meeting of the Community Development and Social Services Committee held on 16th September, 2024

16/09/2024

DATE

CHAIRPERSON



NDOLA UNITED FOOTBALL CLUB

CONSTITUTION

AND

RULES

NDOLA UNITED FOOTBALL CLUB

CONSTITUTION

AND RULES

DEFINITIONS:

The terms/acronyms given below denote the following:

Executive committee: Shall mean the committee duly constituted under article 11 of this Constitution.

Member: Shall mean a member as defined in article 6 of this constitution

Policies: Shall mean and include the decision of the sponsors and resolutions that are made by the AGM

Sponsors Shall mean the Ndola City Council and other sponsors of Ndola United Football Club

FAZ: Football Association of Zambia

Officials: Board member, committee member, coach, trainer and any other person (except Players) responsible for technical, medical and administrative matters of Ndola United Football Club

Club: Means Ndola United Football Club a member affiliated to FAZ

NUFC: Ndola United Football Club

Player: A football player registered to Football Association of Zambia under Ndola United Football club.

Constitution: The system of laws and basic principles that govern Ndola United Football Club.

Regulations or Rules: Means such regulations or rules governing the operations of the club and as may be made by the executive committee.

Ordinary Courts: National courts which hear public and private legal matters Executive Committee:

The executive body of Ndola United Football Club.

Financial Year: Means a period running from the 1st August to 31st July of each year in line
with FAZ calendar year.

ARTICLE 1: NAME, HEADQUARTERS, LEGAL FORM

- i) **NAME:** The name of the Club is and shall be “**NDOLA UNITED FOOTBALL CLUB**” abbreviated as **NUFC**
- ii) **HEADQUARTERS:** The headquarter is at Musa Kasonka Stadium, Masala, Ndola district in the Copperbelt Province of Zambia.
- iii) **AFFILIATION:**
 - 1. The club shall be affiliated to the Football Association of Zambia, referred to as FAZ.
 - 2. The Club shall be subject to all rules and regulations of FAZ and/or any other body constituted to control the game of football, that is CAF and FIFA.

ARTICLE 2: RESTRICTED USE OF THE CLUB NAME

- a. No member shall arrange, on his or her own responsibility, to use the Club name in any way without the concurrence of the Executive Committee or Ndola City Council.

ARTICLE 3: NEUTRALITY AND NON-DISCRIMINATION

- i) **NUFC** is neutral in matters of politics and religion.
- ii) **DECLARATION:** The club declares itself to be a free association, non-political, non-sectarian and totally opposed to any discrimination on grounds of race, colour, creed, nationality, sex, origin, social group, or any other apparent distinguishing factors. Violation of this declaration is punishable by suspension or expulsion and/or other disciplinary measures deemed fit.

ARTICLE 4: CONTROLLING ORGANISATION AND SUPREME AUTHORITY

- i) The Ndola City Council shall remain a controlling organization of all internal operations and management of the club and will be the supreme authority and the final arbitration on all questions of doubt and disputes concerning the internal affairs and activities of the club.
- ii) The Football Association of Zambia shall be the controlling organization of all football related operations and management of the club and will be the supreme authority and the final arbitration on all questions of doubt and disputes concerning football affairs.

- iii) The club shall be registered as a legal entity under Patents and Companies Registration Agency (PACRA) and shall be limited by shares.
- iv) The club shall be a profit making organization and its affairs shall be conducted in accordance with normal business practice.
- v) There shall be an executive committee that will be in charge of daily management of the club.
- vi) The council shall appoint a board of trustees to manage and govern the assets of the club. The board's utmost duty is to protect the organization's and stakeholder best interests through decisions made on its behalf.
- vii) Some members of this committee shall be appointed from the council and others shall be elected by ballot at an elective Annual General Meeting (AGM) from the community. The term in office shall be a period of two (2) years.
- viii) Ndola City Council to be a shareholder on one part, the Ndola Community to be the shareholder on the other part.
- ix) The shareholding shall be split by 51/49 between Council and the Community.
- x) Ndola City Council shares to be held in trust by the Town Clerk, Director of Housing and Social Services and Director of Finance.
- xi) The Community Shares to be held by the sitting Ndola United Executive Committee Chairman and Vice Secretary and two Exco members coming from the community.

ARTICLE 5: OBJECTIVES

The objectives of the Club shall be:

- i) To arrange, provide and promote for its members football activities and to encourage the proficiency and ability in the playing of the game in all its aspects thereof.
- ii) To carry out fundraising activities in order to generate funds for the club.
- iii) To engage in any business that is profitable and beneficial to the club and welfare of the entire membership of the club through strategic partnerships and business in order to improve the financial status of the club.
- iv) To promote and develop football as a popular sport for the benefit of members and soccer fans.

- v) To become affiliated with any body, corporation or association as the committee may deem desirable.
- vi) To provide and maintain club premises and pitches and implement effective facility development plans that will support major facility upgrades.
- vii) To participate fully in all activities designed to promote and improve the game of football through:
 - 1. Promoting and fostering the spirit of sportsmanship
 - 2. To uphold the rules of football as defined or recognized by FAZ.
- viii) To disseminate information on HIV/AIDS and Environmental mainstreaming through sport.
- ix) To do all such other things as may be considered incidental or conducive to attaining the above objectives and promote generally by all constitutional means the interests of the Ndola United Football Club.
- x) To constantly improve the game of football at NUFC and promote it particularly through female, youth and development programmes.
- xi) To promote integrity, ethics and fair play with a view of preventing all methods or practices, such as corruption, doping among football players and match manipulation, which might jeopardise the reputation of NUFC and its members.

ARTICLE 6 MEMBERSHIP

- i) All prospective members except the players shall be eligible members of the club upon payment of an annual membership fee as determined by the executive committee. However, notwithstanding the above, members shall only qualify to stand for elections to any office of the executive after one year of membership. Only paid up members shall be eligible to vote as they shall constitute an electoral college
- ii) membership fee as prescribed by the executive committee, shall not be refunded under any circumstances. Membership shall be valid for a period of one (1) year and renewable each year
- iii) An application for membership shall be submitted to the club secretary on the form prescribed for the purpose and shall be accompanied by the application fee and the annual subscription for the year in which the application is made.

- iv) Such affiliation or application shall be considered by the Executive Committee which may accept, defer or reject any application.

ARTICLE 7: CLASSES OF MEMBERSHIP

There shall be three classes of membership namely Bronze, Silver and Gold. The benefits and incentives that come with each category of membership shall be determined by the Executive Committee except that members who wish to be elected for any of the executive committee positions of the club should be Gold members only.

- i) **Bronze members:** These members shall pay the lowest bracket of membership fees as may be deemed by the Executive.
- ii) **Silver members:** These members shall pay the middle bracket of membership fees as may be deemed by the Executive.
- iii) **Gold members:** These members shall pay the highest bracket of membership fees as may be deemed by the Executive.
- i) **Honorary Life member:** Any person distinguished in promoting or encouraging the interest of sport of the club in particular may be elected honorary member for life or for period as the committee may determine from time to time.
- ii) **Ex-Official**– any person the sponsors may appoint for such purpose.

ARTICLE 8: EXPULSIONS

- i) The Executive Committee may expel from the club, or otherwise punish or penalise, any member whose conduct, in the opinion of the Committee is discreditable or injurious to the character or interests of the club
- ii) A member may be expelled by a resolution of two thirds of the members present and voting out at the meeting specifically called for the purpose.
- iii) Provided that the member may appeal to the committee against the expulsion within fourteen (14) days of receiving notice of expulsion. The member notifies the club secretary in writing of his/her intention to appeal.

ARTICLE 9: ASSETS AND RESOURCES

- i) All assets, properties and liabilities under the Club shall be registered under Ndola City Council and the Treasurer shall maintain a record of such assets and liabilities.
- ii) All properties donated to the Football club by members or organizations shall be deemed as being property belonging to the club and therefore, no single

person has the right to use such public property without the authority of the executive committee.

- iii) No assets shall be transferred or given to anybody without a formal resolution of and express approval of the board of trustees and the council.
- iv) The club may source for funds/properties from external donors provided the Council and shareholders are notified.
- v) Members and non-members entrusted with the organisation of fundraising ventures shall be liable to pay to the club whatever sum of money the club shall have raised.
- vi) The club may accept gifts and maintain a gift inventory in line with the club's gifts policy.

ARTICLE 10: COMPOSITION EXECUTIVE COMMITTEE

- i) The Executive Committee shall consist of a Chairperson, Vice Chairperson, Secretary, Vice Secretary, Treasurer, Vice Treasurer, Women's representative, Youth representative and Four Committee members.
- ii) The Council shall appoint the following Five (5) on the Executive Committee:
 - 1. Vice Chairperson
 - 2. General Secretary (CEO)
 - 3. Treasurer
 - 4. Two committee members.
- iii) The General Secretary (appointee) shall be based at the club headquarters as he/she carries out day to day operations of the club as club CEO. The CEO will report to the Executive through the Chairman.
- iv) The Chairperson, Vice Secretary, Vice Treasure and four committee members shall be elected at the Annual General Meeting and shall hold office for a period of two years.
- v) Two committee members (one appointed and one elected shall be based at the club headquarters to assist the General Secretary in running daily activities.

ARTICLE 11: POWERS OF THE EXECUTIVE COMMITTEE

The Executive Committee:

- i) Shall be responsible for efficient and effective day to day administration of the club.
- ii) Shall formulate the structure and policies of the club, appoint sub-committee members and ensure that each sub-committee performs its role within the framework of the club constitution, rule and regulations. The subcommittee shall have clear objectives with defined specific tasks and goal stipulated by the main executive committee to have a clear understanding of expectations.
- iii. Shall ensure that policies, rules, regulation and decisions of FAZ are accurately interpreted and efficiently implemented.
 - i) Shall carry out policies and decisions of the sponsors and ensure that all decisions and policies are in conformity with sponsors policies and rules.
 - ii) Ensure that policy issues are taken to the AGM and Special general meetings for approval.
 - iii) Shall approve filling in of vacancies that may occur during the terms of office of the executive committee.
 - iv) Shall determine the nature, scope and composition of contracts for the football players of the club.
 - v) Shall ensure that discipline is maintained in the club.
 - vi) Shall ensure regular meetings are held at least once a month.
 - vii) Shall appoint executive committee members to represent the club at FAZ meetings and other forums.
 - viii) Shall prepare and present to the sponsors and annual general meeting the financial reports for scrutiny and adoption.
 - ix) Shall ensure that the approved budget as well as funds raised from other sources are utilised and accountable on football activities.
 - x) Shall approve major expenditure as per guidelines set from time to time.

ARTICLE 12: ADMINISTRATION OF THE EXECUTIVE COMMITTEE

The Chairperson shall:

- i) The chairperson in consultation with the Secretary shall determine the agenda, date and venue of a meeting for the executive and sub-committees.
- ii) Preside at all general meetings and the executive committee meetings of the club and will ensure that there is a two third attendance to form a quorum before commencement of any meeting. In the event of a tie during voting, the chairperson shall have a casting of vote.
- iii) Present the Chairperson's report at the Annual General Meeting
- iv) The Chairperson shall ensure that minutes of the executive committee meetings are prepared and submitted to the Council through the Director of Housing and Social Services as may be required from time to time.
- v) Ensure that decisions made in meetings are implemented by the respective members.
- vi) Assign tasks to members of the committee as the case may be.
- vii) The chairperson shall be on stand-by to be consulted by the club secretary on any day-to-day matters of administration, policy, events which may need management guidance and approval but which cannot wait until there is a meeting of the AGM.

The Vice Chairperson shall:

- i) In the absence of the chairperson or his inability to act as chairperson the vice chairman shall exercise the powers and perform the functions of the chairperson.
- ii) In an event of resignation, dismissal or death of the chairperson, the vice chairperson shall assume the responsibilities of the chairperson until elections for the new chairperson are held.
- iii) Chair all disciplinary committee meetings.
- iv) Chair all fundraising committee meetings.

The Secretary shall:

- i) Be charged with the club's overall day to day administration.
- ii) Circulate the agenda for the meeting to all executive committee members and its sub-committees and shall publicize them as appropriate. They shall also ensure notices of all meetings (ordinary or regular) are circulated at least one week in advance. The notice

of meeting shall specify: the agenda of the meeting; the venue of the meeting, and the time of the meeting.

- iii) Prepare and keep records of all proceedings at all club meetings and its sub-committees and distribute them to the executive members and other relevant recipients.
- iv) Deal with all correspondences of the club.
- v) Maintain and keep records of meetings, matches and players ready for inspection by football authorities or by any member on request.
- vi) Maintain the register of club members.
- vii) Be responsible for good public relations and hospitality and shall carry out such duties as chairperson may delegate from time to time.
- viii) Present a Secretary's report at the Annual General Meeting
- ix) conduct the affairs and business of the club on behalf of the management and carry out all the decisions of the club taken during the general meeting or at the executive committee meetings.

The Vice Secretary shall:

- i) Be responsible for the Secretary's duties during his absence or for whatever reason is not able to carry out the functions.
- ii) Carry out such other duties and functions that the secretary may from time to time delegate.
- iii) Be the head of the Technical Committee and will ensure that he chairs meetings with the technical bench on all matters concerning the welfare of game management. Further, the Vice-Secretary shall be in charge of player recruitment and will submit such reports to the executive through the secretary.

The Treasure shall:

- i) Maintain and keep records of all transitions of the club.
- ii) Collect and receipt all incomes of the club
- iii) Maintain an accurate and up-to-date inventory of assets.
- i) Make payments on behalf of the club only when authorised to do so by the executive committee.
- ii) The treasurer shall spearhead resource mobilization for development of the club
- iii) Present statements of the clubs financial standing when requested to do so by the executive or for a proposed general meeting.
- iv) Present the books for auditing at the Annual General Meeting.

The Vice Treasurer shall:

- i. Carry out duties of the treasure whenever delegated by the treasurer.
- ii. Be responsible for the treasurer's duties during his absence.

Committee Members:

- i) There shall be four (4) committee members whose responsibility shall be to give support to both the chairperson and the executive.
- ii) Shall participate in club activities as directed by the executive.

Team Manager:

- i) Shall take full responsibility for the players' general welfare.
- ii) Shall recommend disciplinary action against erring players and stall to the disciplinary subcommittee.
- iii) Shall organise transport and other logistics for the team.
- iv) The Vice Team Manager shall act as Team Manager in the absence of the Team Manager.
- v) The Vice Team Manager shall carry out duties as directed by the Team

ARTICLE 13: FUNCTIONS OF THE EXECUTIVE

- i) The committee shall meet to dispatch of the business of the Club as often as may be necessary but not less than once in every month and shall be vested with the following powers.
- ii) To manage the affairs of the Club and maintenance of the Club and meet incidental expenses and charges in this regard.
- iii) To nominate a member or members in place of the member or members ceasing to act in any office in any official capacity or to fill any vacancies which may arise from any cause whatsoever?
- iv) To admit a member into the Club and to call upon a member to resign or to expel any member as it in its discretion shall deem fit. The appointment of a Manager in charge of stock and sales of the bar and other staff supporting staff shall be vested in the Executive Committee.
- v) To appoint convenors for such subcommittees as they shall in their discretion deem necessary.
- vi) To delegate any of their powers and function to sub-committees.
- vii) The right at all times to prohibit the use of club facilities by any visitor or proposed visitor without the necessity of giving any reason for arriving at such a decision.

ARTICLE 14: MEETINGS

- i) The committee shall meet as often as may be required, but not less than once per month, to conduct the business of the Club.
- ii) The emergency meetings may be convened when deemed necessary. An emergency meeting can be called in less than seven days when need arises.
- iii) Sub-committee shall meet as and when it is necessary.

ARTICLE 15: ANNUAL GENERAL MEETINGS

- i) The Annual General Meeting of the Club shall be held not later than one (1) calendar month of the completion of the football season/year at a place and time determined by the Committee
- ii) There shall be an elective Annual General Meeting after every two years.

- iii) A special General Meeting Notice shall be given for an Extraordinary meeting.
An Extraordinary General meeting shall be called for under the following conditions:
 - 1. A petition signed by two thirds of the members of the Club.
 - 2. The executive committees have urgent business requiring mandate from members.

ARTICLE 16: AGENDA FOR THE ANNUAL GENERAL MEETING SHALL BE:

The agenda for the Annual General Meeting shall be:

- i) Apologies
- ii) Reading and adopting of the current AGM agenda
- iii) Approval of the minutes of the previous Annual General Meeting and any arising business.
- iv) Reading of correspondences
- v) Chairperson's report
- vi) Secretary's report
- vii) Treasurer's report
- viii) Auditors report
- ix) Motions on notice
- x) Elections of the executive in elective AGM's
- xi) Matters arising

ARTICLE 17: NOTICE OF MEETINGS

- i) Notice of fourteen (14) days shall be given for the Annual General Meeting and it shall be sent to all members and copies delivered to the Director of Housing and Social Services of Ndola City Council and shareholders.
- ii) At least seven (7) days notice be given for an Extra- Ordinary Annual General Meeting.

ARTICLE 18: QUORUM:

- i) At least half (1/2) of the Executive Committee Members shall form a quorum and their decision shall unanimously be agreed upon by the full Executive Committee. The Chairperson and/or Vice Chairperson shall attend all Executive Committee meetings.

- ii) The quorum of the Annual General Meetings shall be two-thirds ($\frac{2}{3}$) of eligible members.
- iii) Should a quorum not be present one hour after the scheduled start of the meeting, then the meeting shall be postponed for one (1) week.
- iv) The meeting shall be adjourned for one (1) week and if at such an adjourned meeting there is no quorum, those present shall be competent to conduct the business.
- v) A committee member failing to attend three (3) consecutive Executive Committee meetings without reasonable cause being given to the Secretary shall automatically cease to be a committee member.

ARTICLE 19: VOTING AND ELECTION OF OFFICE BEARERS

ELECTORAL PROCESS

- i) All Executive Committee members shall step down after a period of two years but shall be eligible for re- elections.
- ii) To fill up the vacancies the Secretary shall cause a notice to be placed on the Club notice board fourteen (14) days before the election.
- iii) Any two members can propose any candidates by notice in writing to the Secretary seven (7) days before the meeting and the Secretary shall forthwith post the name.
- iv) Ballot list shall be printed containing the alphabetical order of all names thus showing names of the proposers of candidates.
- v) Every paid up member and above the age of 18 years shall be entitled to a vote for as many candidates as there are vacancies.
- vi) Voting shall be by secret ballot and only members of the Club shall be eligible to vote.
- vii) Whoever receives many votes shall be deemed elected and in the case of the two or more candidates getting an equal number of votes the chairperson shall have the second or casting vote.
- viii) At the February of each elective year, members of each sub-committee cease to be members of their respective sub-committees as they will be dissolved but shall then be eligible for re-election. To fill up the vacancies, the convener of

each sub-committee shall cause a list of committee vacancies to be posted on the Club notice board and members shall be eligible to propose candidates for such vacancies.

- ix) Designated officers of the sponsors shall be returning officers with full powers to conduct the elections.
- x) The Director of Housing and Social Services shall recommend persons to be returning officers to supervise the Club's elections.
- xi) The following persons shall not be eligible to contest an election.
 - 1. Serving a ban ratified by club
 - 2. Serving a suspension by the club
 - 3. A person of unsound mind
 - 4. Players, team coach and manager shall not be eligible to vote
 - 5. A person under the age of 18 years

ARTICLE 20: SUB-COMMITTEE, ELECTION, POWERS AND DUTIES

- i) The executive committee shall have the power to appoint members of a standing sub-committee.
- ii) Each standing sub-committee shall consist of five (5) members.
- iii) Sub-committee members failing to meet three (3) consecutive meetings without reasonable cause shall automatically cease to be sub-committee members.
- iv) the club chairperson shall be eligible to attend any of the sub-committee meetings.
- v) There shall be the following standing sub-committees namely; Finance Committee, Fundraising Committee, Disciplinary Committee and Technical Committee

The sub-committee shall meet for the discharge of their business as often as they may be necessary but not less than once in every month and shall be vested with the following powers:

- i) To manage and superintend the affairs of the sub-committee, in close liaison with the main committee of the Club.
- ii) The chairperson of each sub-committee shall attend each meeting of the main committee.
- iii) In his absence, a member of the sub-committee shall be selected by such sub-committee meeting
- iv) In the event of the equality of votes at a sub-committee meeting, the convenor who shall take the chair at any meeting or in his absence a member selected by the sub-committee shall have a second or casting vote.

ARTICLE 21: DISCIPLINARY COMMITTEE

- i) The Committee shall consist of the Vice Chairperson as Chairperson, two members chosen from among the members of the Executive Committee and at least two other members from the general public. The Secretary shall attend as ex-officio.
- ii) The Disciplinary committee shall have powers to:
 - i) To examine reports submitted by the Team Manager and the Coach concerning culpable incidents on the field of play or its precincts or any other occasion connected to football.
 - ii) To decide upon what disciplinary measures to be taken against players, official, members and Supporters in all cases of complaints, infringements or culpable conduct reported or referred to the committee.
 - iii) To hear and determine disputes and communicate the decisions to the parties concerned.
 - iv) To compel all parties of a dispute to forward a detailed report and if necessary to appear before the Committee.
 - v) To formulate and recommend to the Executive Committee for approval the rules and regulations governing the disciplinary committee.
- i) Appeals may be made against the decision to the executive committee within three days of the disciplinary committee's decision. Appeals may be further made to the Disciplinary Committee of FAZ.

- ii) An appeal fee to be determined from time to time by the executive committee shall be paid before an appeal is heard.
- iii) In the absence of rules to the contrary, the punishments laid down by the Football Association of Zambia as amended from time to time may be applied with suitable variations.

ARTICLE 22: TECHNICAL COMMITTEE

- i) The Committee shall consist of the Vice-Secretary as Chairperson, technical advisor and not more than three members from the general public.
- ii) Duties of the technical committee
 - 1. To carry out research in football development and organization.
 - 2. To assist any other committee or organ of the Club to plan schedules of administration and organization.
 - 3. To study and determine the methods and means of discovering and selecting the talented among footballers.
 - 4. To map out strategies in regards to modern football techniques.
 - 5. To promote and develop junior football through the promotion side.

ARTICLE 23: FINANCE COMMITTEE

- i) Composition
 - 1. The Committee shall consist of the Treasurer as Chairperson, two members chosen from among members of the Executive Committee and at least two other members from the general public.
- ii) Duties
 - 1. To manage and control finances of the Club.
 - 2. To advise the Executive Committee on financial matters.
 - 3. To examine the budget of the Committees and submit them to the Executive Committee for approval, and to prepare all budgets.
 - 4. To prepare an annual financial report which shall include the balance sheet, receipts and payments account.

5. To cause proper records of receipts and expenditure accounts to be kept and be audited by appointed auditors.
6. To recommend financial rules and regulations to the Executive Committee.
7. To advise and assist members in all financial matters.
8. To organize fundraising activities.
9. To control distribution, sale of tickets, receipts from matches and all accounting documents prepared on the occasion of such matches.
10. To recommend to the Executive Committee allowances for players and officials.
11. To appeal for donations and grants from bodies decided upon by the Executive Committee. This will include Companies, firms, Statutory bodies and distinguished individuals.
12. To raise monies temporarily or otherwise in form of loans or overdrafts facilities from the Club's bankers for the purpose of improving the Club's financial position.
13. To be responsible for the running of the Club's transport system.

ARTICLE 24: FUNDRAISING COMMITTEE

i) Composition.

1. The Committee shall consist of the Vice Chairperson as Chairperson, two members chosen from among the members of the Executive Committee and at least two other members from the general public.

ii) Duties.

1. To organise in conjunction with the Finance Committee fundraising activities.
2. To appeal to Business Houses to financially support the Club.
3. To raise funds for any projects agreed upon by the Executive Committee.
4. To be responsible for the Club membership drive.

ARTICLE 25: REVENUE SOURCES

- i) Sponsorship coming from Ndola City Council and club shareholders. The Council shall allocate grants to NUFC at the beginning of the football season and during the mid-season break to enable smooth running of the club.
- ii) Club members annual subscription fees and monthly subscription that shall be determined by the executive from time to time.
- iii) Donations from well wishers
- iv) Fundraising activities, which shall be organized by a fundraising committee.
- v) Revenue generated from football related to activities that include gate sales from match day tickets, hire of grounds, rentals from club bar and other future premises.
- vi) Penalties which shall be determined by the disciplinary sub-committee and approved by the executive.

ARTICLE 26: EXPENDITURE

The club treasurer will ensure that expenditures are in line with the following conditions:

- i) The expenditure stipulated in the budget.
- ii) Other expenses approved by the AGM and expenses that the Executive Committee is entitled to incur within the scope of its authority; and all other expenses in keeping with the objectives pursued by the club.
- iii) All expenses should be in line with the requirements of the sponsors.
- iv) All expenditure to the club's finances shall be accounted for in a manner acceptable to the appointed Accountants, that is to say, valid receipts; or some other acceptable authorization for expenditure shall be produced against any disbursement without necessarily restricting the discretion given to the club secretary elsewhere in this constitution.
- v) The revenue and expenses of NUFC shall be managed so that they balance out over the financial period.

ARTICLE 27: ACCOUNTABILITY AND TRANSPARENCY

- i) There shall be a bank account opened at such a bank as may be determined by the executive committee.

- ii) There shall be four (4) signatories of such a bank account namely; the club Chairperson and Vice Chairperson on one panel and the other panel will comprise the General Secretary and Treasurer. Two of the four may sign at any one time provided one of the two signatures is that of either the Chairperson or the Vice-Chair.
- iii) The Treasurer shall submit a financial report at quarterly meetings and any other meetings as determined by the executive committee.
- iv) All monies received by the treasurer shall first be banked.
- v) All payments or withdrawals shall be made by way of a cheque.
- vi) The treasure shall give and obtain receipts for all monies received and expended.
- vii) The sponsors shall have the liberty to inspect the books of accounts at any time.

ARTICLE 28: AUDITING OF THE BOOKS OF ACCOUNTS

- i) Books of accounts shall be audited by auditors appointed by the Council annually or as requested by the members of the club.
- ii) The members may be a simple majority to cause the books of the accounts to be audited.
- iii) Auditors shall certify the reports to be correct before they are submitted to the Annual General Meeting or any general meeting of the club especially called for that purpose.
- iv) Preparation of statements of the accounts for the period under review shall be the responsibility of the treasurer, and statements of accounts shall be approved by the executive committee prior to the presentation annually to the general membership of the club.
- v) The financial year shall be from 1st August to 31st July of each year.
- vi) The sponsors, that is the Council and Shareholders may engage an independent external auditor to audit the accounts approved and reported by the Finance Committee in accordance with the appropriate principles of accounting and present a report to the AGM.

ARTICLE 29: MINUTE BOOK

The minutes of all general meetings and all committee meetings shall be properly recorded in the minute's book kept for the purpose.

ARTICLE 30: RESIGNATION

Resignations shall be referred in writing to the Secretary

ARTICLE 31: RULES

All members of the Club shall abide by the rules of the Club. The committee shall at all times interpret the rules of conduct to all members.

i) PAYING ALLOWANCES

- i) The Executive Committee shall have the powers to determine winning allowances as and when need arises.
- ii) The Executive shall have discretionary powers to determine the allowances in special circumstances.
- iii) In case of an abandoned match, payment shall be determined by the decision of the Football Association of Zambia (FAZ).
- iv) The Director Finance Shall help the club treasurer recover any monies or properties owed to the club

v) APPOINTMENT OF COACHES

- i) The Committee is empowered to appoint coaches.
- ii) The coaches shall be appointed through head-hunt or through advertising.
- iii) The Coaches shall receive remuneration as provided by in their contracts.
- iv) The Committee shall have the authority to terminate the services of any Coach for reasons, which may be considered detrimental to the welfare of the Club.

v) REGISTRATION OF PLAYERS

- i) All players shall be registered with FAZ, and shall be officially recorded as a player for the Club.
- ii) All players shall meet the age criteria as determined by the Club Technical Committee

IV. CLEARANCE OF PLAYERS

- a. The Committee shall have the right to refuse to clear any player to another club if the player is in any way in debt to the Club.

i) ARTICLE 32: ANNUAL AWARDS

The following awards shall be presented at the club's annual presentation meeting or at a separate event:

- i) Top goal scorer of the year
- ii) Player of the Year
- iii) Most improved Player of the Year
- iv) The young player of the year
- v) The most disciplined player of the year

vi) COMPLAINTS

- a. Any complaints by members shall be in writing, signed by the member (s) complaining, and submitted to the Committee for consideration. The result of the Committee's decision shall be communicated to the member(s) making the complaint

ARTICLE 32: DISSOLUTION OF THE EXECUTIVE COMMITTEE

- i) The Executive Committee shall be dissolved after the expiry of the term of office which is two years by/through the Council Management Resolution to pave way for election of new members.
- ii) The executive committee may be dissolved when by the consent of 75% of members voting at a Special General Meeting called for such a purpose.
- iii) The sponsors can dissolve the executive committee in cases of incompetence, financial irregularities, mismanagement, indiscipline or failure to follow established procedures or when it violates the constitution.
- iv) Council management in turn shall have powers to appoint an interim Executive to run the affairs of the club when such recommendations shall arise.
- v) The interim executive committee shall be appointed until fresh elections are held.
- vi) The interim executive committee shall be in office for not more than ninety (90) days.

ARTICLE 33: AMENDMENTS TO THE CONSTITUTION

- i) Amendments to the constitution shall be made through the Executive Committee and shall be subject to approval by the Annual General Meeting.
- ii) No rule shall be amended or repealed nor shall any new rule be made except on the consent of 75% of the members voting at the AGM or a Special General Meeting called for such purpose.
- iii) Notice of any proposed amendment, repeal or addition must be given at least twenty one (21) days prior to such general meeting to the Secretary and must be posted on the notice board not less than fourteen (14) days prior to such general meeting.
- iv) Any amendment or alteration to the rules of the Club shall be forwarded to the Council for ratification.
- v) The Secretary shall provide to the Director of Housing and Social Services particulars of the changes proposed and shall ensure that effect is not given to the change without prior ratification by the Council

ARTICLE 34: CLUB PATRON

The Chairperson of the sponsor's governing body shall be a patron of the Club. Other patron's may be recommended by the Executive Committee and ratified by the sponsors.

ARTICLE 35: THE TOWN CLERK or his or her appointee shall;

- i) Be a link between the Sponsors and the Club to interpret Sponsors policies to the Executive Committee.
- ii) Chair meetings of the interim committee
- iii) Appoint a returning officer to conduct elections

II. ADOPTION

a) This constitution was approved and adopted at this annual general meeting held at

.....on the.....dayof.....

.....

.....

Chairperson

Secretary

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THE COMMON SEAL OF THE SPONSOR